



CHAPTER 54.

An Act to make provision for furthering the efficient manufacture, transport, and supply of Munitions for the present War ; and for purposes incidental thereto. A.D. 1915.

[2nd July 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

1.—(1) If any difference exists or is apprehended between any employer and persons employed, or between any two or more classes of persons employed, and the difference is one to which this Part of this Act applies, that difference, if not determined by the parties directly concerned or their representatives or under existing agreements, may be reported to the Board of Trade, by or on behalf of either party to the difference, and the decision of the Board of Trade as to whether a difference has been so reported to them or not, and as to the time at which a difference has been so reported, shall be conclusive for all purposes. Settlement
of labour
differences.

(2) The Board of Trade shall consider any difference so reported and take any steps which seem to them expedient to promote a settlement of the difference, and, in any case in which they think fit, may refer the matter for settlement either in accordance with the provisions of the First Schedule to this Act or, if in their opinion suitable means for settlement already exist in pursuance of any agreement between employers and persons employed, for settlement in accordance with those means.

(3) Where a matter is referred under the last foregoing subsection for settlement otherwise than in accordance with the provisions of the First Schedule to this Act, and the settlement is in the opinion of the Board of Trade unduly delayed, the Board may annul the reference and substitute therefor a

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(4) The award on any such settlement shall be binding both on employers and employed and may be retrospective; and if any employer, or person employed, thereafter acts in contravention of, or fails to comply with, the award, he shall be guilty of an offence under this Act.

Prohibition
of lock-outs
and strikes
in certain
cases.

2.—(1) An employer shall not declare, cause or take part in a lock-out, and a person employed shall not take part in a strike, in connexion with any difference to which this Part of this Act applies, unless the difference has been reported to the Board of Trade, and twenty-one days have elapsed since the date of the report, and the difference has not during that time been referred by the Board of Trade for settlement in accordance with this Act.

(2) If any person acts in contravention of this section, he shall be guilty of an offence under this Act.

Differences to
which Part I.
applies.

3. The differences to which this Part of this Act applies are differences as to rates of wages, hours of work, or otherwise as to terms or conditions of or affecting employment on the manufacture or repair of arms, ammunition, ships, vehicles, aircraft, or any other articles required for use in war, or of the metals, machines, or tools required for that manufacture or repair (in this Act referred to as munitions work); and also any differences as to rates of wages, hours of work, or otherwise as to terms or conditions of or affecting employment on any other work of any description, if this Part of this Act is applied to such a difference by His Majesty by Proclamation on the ground that in the opinion of His Majesty the existence or continuance of the difference is directly or indirectly prejudicial to the manufacture, transport, or supply of Munitions of War.

This Part of this Act may be so applied to such a difference at any time, whether a lock-out or strike is in existence in connexion with the difference to which it is applied or not:

Provided that if in the case of any industry the Minister of Munitions is satisfied that effective means exist to secure the settlement without stoppage of any difference arising on work other than on munitions work, no proclamation shall be made under this section with respect to any such difference.

When this Part of this Act is applied to any difference concerning work other than munitions work the conditions of labour and the remuneration thereof prevailing before the difference arose shall be continued until the said difference is settled in accordance with the provisions of this Part of this Act.

PART II.

Controlled
establish-
ments.

4. If the Minister of Munitions considers it expedient for the purpose of the successful prosecution of the war that any establishment in which munitions work is carried on should be

subject to the special provisions as to limitation of employers' profits and control of persons employed and other matters contained in this section, he may make an order declaring that establishment to be a controlled establishment, and on such order being made the following provisions shall apply thereto:—

- (1) Any excess of the net profits of the controlled establishment over the amount divisible under this Act, as ascertained in accordance with the provisions of this Act, shall be paid into the Exchequer.
- (2) Any proposal for any change in the rate of wages, salary, or other emoluments of any class of persons employed in the establishment, or of any persons engaged in the management or the direction of the establishment, (other than a change for giving effect to any Government conditions as to fair wages or to any agreement between the owner of the establishment and the workmen which was made before the twenty-third day of June, nineteen hundred and fifteen), shall be submitted to the Minister of Munitions, who may withhold his consent within fourteen days of the date of the submission:

Provided that if the Minister of Munitions so directs, or if the Minister's consent is withheld and the persons proposing the change so require, the matter shall be referred for settlement in accordance with the provisions of the First Schedule to this Act, and the consent of the arbitration tribunal, if given, shall in that case have the same effect as the consent of the Minister of Munitions.

If the owner of the establishment or any contractor or sub-contractor employing labour therein makes any such change, or attempts to make any such change, without submitting the proposal for the change to the Minister of Munitions or when the consent of the Minister has been withheld, he shall be guilty of an offence under this Act.

- (3) Any rule, practice, or custom not having the force of law which tends to restrict production or employment shall be suspended in the establishment, and if any person induces or attempts to induce any other person (whether any particular person or generally) to comply, or continue to comply, with such a rule, practice, or custom, that person shall be guilty of an offence under this Act.

If any question arises whether any rule, practice or custom is a rule, practice or custom which tends to restrict production or employment, that question shall be referred to the Board of Trade, and the Board of Trade shall either determine the question themselves or, if they think it expedient or either party requires it, refer the question for settlement in accordance

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with the provisions contained in the First Schedule to this Act. The decision of the Board of Trade or arbitration tribunal, as the case may be, shall be conclusive for all purposes.

- (4) The owner of the establishment shall be deemed to have entered into an undertaking to carry out the provisions set out in the Second Schedule to this Act, and any owner or contractor or sub-contractor who breaks or attempts to break such an undertaking shall be guilty of an offence under this Act.
- (5) The employer and every person employed in the establishment shall comply with any regulations made applicable to that establishment by the Minister of Munitions with respect to the general ordering of the work in the establishment with a view to attaining and maintaining a proper standard of efficiency and with respect to the due observance of the rules of the establishment.

If the employer or any person so employed acts in contravention of or fails to comply with any such regulation, that employer or person shall be guilty of an offence under this Act.

- (6) The owners of an establishment shall have power, notwithstanding anything in any Act, Order, or deed under which they are governed, to do all things necessary for compliance with any provisions of this section, and any owner of an establishment shall comply with any reasonable requirements of the Minister of Munitions as to information or otherwise made for the purposes of this section, and, if he fails to do so, shall be guilty of an offence under this Act.

Where in any establishment munitions work is carried on in some part of the establishment but not in other parts, the Minister of Munitions may, if he considers that it is practicable to do so, treat any part of the establishment in which munitions work is not carried on as a separate establishment, and the provisions of this Act shall take effect accordingly.

Supplemen-
tary provisions
as to the limi-
tation of the
profits of a
controlled
establishment.

5.—(1) The net profits of a controlled establishment shall be ascertained in accordance with the provisions of this section and rules made thereunder and the amount of profits divisible under this Act shall be taken to be an amount exceeding by one-fifth the standard amount of profits.

(2) The standard amount of profits for any period shall be taken to be the average of the amount of the net profits for the two financial years of the establishment completed next before the outbreak of the war or a proportionate part thereof.

(3) If in any case it appears or is represented to the Minister of Munitions that the net profits or losses of all or any other establishments belonging to the same owner should be brought into account, or that the average under this section affords or

may afford an unfair standard of comparison or affords no standard of comparison, the Minister may, if he thinks just, allow those net profits or losses to be brought into account, or substitute for the average such an amount as the standard amount of profits as may be agreed upon with the owner of the establishment.

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The Minister of Munitions may, if he thinks fit, and shall, if the owner of the establishment so requires, refer the matter to be determined by a referee or board of referees appointed or designated by him for the purpose, and the decision of the referee or board shall be conclusive on the matter for all purposes.

(4) The Minister of Munitions may make rules for carrying the provisions of this section into effect, and these rules shall provide for due consideration being given in carrying out the provisions of this section as respects any establishment to any special circumstances such as increase of output, provision of new machinery or plant, alteration of capital or other matters which require special consideration in relation to the particular establishment.

6.—(1) If any workman in accordance with arrangements made by the Minister of Munitions with or on behalf of trade unions enters into an undertaking with the Minister of Munitions that he will work at any controlled establishment to which he may be assigned by the Minister, and be subject to the penalty imposed by this Act if he acts in contravention of or fails to comply with the undertaking, that workman shall if he acts in contravention of or fails to comply with his undertaking be guilty of an offence under this Act.

Voluntary
undertaking
to work for
Minister of
Munitions.

(2) If any employer dissuades or attempts to dissuade a workman in his employment from entering into an undertaking under this section, or retains or offers to retain in his employment any workman who has entered into such an undertaking after he has received notice from the Minister of Munitions that the workman is to work at some other establishment, that employer shall be guilty of an offence under this Act.

7.—(1) A person shall not give employment to a workman, who has within the last previous six weeks, or such other period as may be provided by Order of the Minister of Munitions as respects any class of establishment, been employed on or in connexion with munitions work in any establishment of a class to which the provisions of this section are applied by Order of the Minister of Munitions, unless he holds a certificate from the employer by whom he was last so employed that he left work with the consent of his employer or a certificate from the munitions tribunal that the consent has been unreasonably withheld.

Prohibition
of the em-
ployment of
persons who
have left work
in munition
factories.

(2) If any workman or his trade union representative complains to a munitions tribunal in accordance with rules made with respect to those tribunals that the consent of an employer

A.D. 1915. has been unreasonably withheld that tribunal may, after examining into the case, if they think fit, grant a certificate which shall, for the purposes of this section, have the same effect as a certificate from the employer.

(3) If any person gives employment in contravention of the provisions of this section, he shall be guilty of an offence under this Act.

Rules as to
badges.

8.—(1) The Minister of Munitions may make rules authorising the wearing of badges or other distinctive marks by persons engaged on munitions work or other work for war purposes, and as to the issue and return of any such badges or marks, and may by those rules prohibit the use, wearing or issue of any such badges or of any badges or marks indicating or suggesting that any person is engaged on munitions work or work for war purposes except as authorised by those rules.

(2) If any person acts in contravention of, or fails to comply with any such rules, he shall be guilty of an offence against this Act.

Application
of Part II.
to docks used
by Admiralty.

9. This Part of this Act shall apply to any docks used by the Admiralty for any purposes connected with the war as it applies to establishments in which munitions work is carried on, with the substitution in relation to any such docks or persons employed in any such docks of the Admiralty for the Minister of Munitions.

PART III.

Amendment of
the Defence
of the Realm
(Amendment)
(No. 2) Act,
1915.

5 Geo. 5. c. 37.

10. The following paragraph shall be substituted for paragraph (d) set out in subsection (1) of section one of the Defence of the Realm (Amendment) No. 2 Act, 1915, and shall be deemed to have been contained in that Act, namely:—

(d) to regulate or restrict the carrying on of any work in any factory, workshop, or other premises, or the engagement or employment of any workman or all or any classes of workmen therein, or to remove the plant therefrom with a view to maintaining or increasing the production of munitions in other factories, workshops, or premises, or to regulate and control the supply of metals and material that may be required for any articles for use in war.

Power to re-
quire informa-
tion from
employers.

11.—(1) The owner of any establishment in which persons are employed shall, if so required by the Minister of Munitions, give to the Minister such information, in such form and in such manner, as the Minister may require as to

(a) the numbers and classes of persons employed or likely to be employed in the establishment from time to time;

(b) the numbers and classes of machines at any such establishment;

(c) the nature of the work on which any such persons are employed, or any such machines are engaged, from time to time; A.D. 1915.

(d) any other matters with respect to which the Minister may desire information for the purpose of his powers and duties;

and the Minister may arrange with any other Government department for the collection of any such information.

(2) If the owner of any establishment fails to comply with this section he shall be guilty of an offence under this Act.

12. If any employer, or the owner of any establishment or any workman, for the purpose of evading any provision of this Act, makes any false statement or representation, or gives any false certificate, or furnishes any false information, he shall be guilty of an offence under this Act. Punishment for false statements, &c.

13. There shall be paid out of moneys provided by Parliament to any person being a member of an arbitration tribunal, munitions tribunal, or board of referees under this Act, or being a referee under this Act, and to any other officers required in connexion with any such tribunal or board, such remuneration and travelling or other expenses (including compensation for loss of time) as the Minister of Munitions or Board of Trade, as the case may be, with the sanction of the Treasury may determine. Payment of members of arbitration and munitions tribunals, &c.

14.—(1) Any person guilty of an offence under this Act— Penalties.

(a) shall, if the offence is a contravention of or failure to comply with an award, be liable to a fine not exceeding five pounds for each day or part of a day during which the contravention or failure to comply continues, and, if the person guilty of the offence is an employer, for each man in respect of whom the contravention or failure takes place; and

(b) shall, if the offence is a contravention of the provisions of this Act with respect to the prevention of lock-outs, be liable to a fine not exceeding five pounds, in respect of each man locked out, for each day or part of a day during which the contravention continues; and

(c) shall, if the offence is a contravention of the provisions of this Act with respect to the prohibition of strikes, be liable to a fine not exceeding five pounds for each day or part of a day during which the contravention continues; and

(d) shall, if the offence is a contravention of or failure to comply with any regulations in a controlled establishment or any undertaking given by a work-

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man under Part II. of this Act, be liable in respect of each offence to a fine not exceeding three pounds ; and

(e) shall, if the offence is a contravention of or failure to comply with any other provisions of this Act, be liable in respect of each offence to a fine not exceeding fifty pounds.

(2) A fine for any offence, under this Act, shall be recoverable only before the munitions tribunal established for the purpose under this Act.

Munitions
tribunals.

15.—(1) The munitions tribunal shall be a person, appointed for the purpose by the Minister of Munitions, sitting with two or some other even number of assessors, one half being chosen by the Minister of Munitions from a panel constituted by the Minister of Munitions of persons representing employers and the other half being so chosen from a panel constituted by the Minister of Munitions of persons representing workmen and the Minister of Munitions may constitute two classes of munitions tribunals, the first class having jurisdiction to deal with all offences and matters under this Act, the second class having jurisdiction, so far as offences are concerned, to deal only with any contravention of, or failure to comply with, any regulation made applicable to a controlled establishment or any undertaking given by a workman under Part II. of this Act.

The Admiralty shall be substituted for the Minister of Munitions under this provision as the authority to appoint and choose members of a munitions tribunal to deal with offences by persons employed in any docks declared to be controlled establishments by the Admiralty.

(2) The Minister of Munitions or the Admiralty shall constitute munitions tribunals as and when occasion requires.

(3) Rules may be made for regulating the munitions tribunals or either class of munitions tribunals so far as relates to offences under this Act by a Secretary of State, and so far as relates to any other matters which are referred to them under this Act by the Minister of Munitions, and rules made by the Secretary of State may apply, with the necessary modifications, any of the provisions of the Summary Jurisdiction Acts or any provisions applicable to a court of summary jurisdiction, which it appears expedient to apply, and any provisions so applied shall apply to munitions tribunals accordingly.

In the application of this provision to Scotland the Secretary for Scotland shall be substituted for the Secretary of State, and in the application of this provision to Ireland the Lord Lieutenant shall be substituted for the Secretary of State.

(4) A person employed or workman shall not be imprisoned in respect of the non-payment of a fine imposed by a munitions tribunal for an offence within the jurisdiction of a tribunal of

the second class, but that tribunal may, without prejudice to any other available means of recovery, make an order requiring such deductions to be made on account of the fine from the wages of the person employed or workman as the tribunal think fit, and requiring the person by whom the wages are paid to account for any sums deducted in accordance with the order.

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16. Any company, association, or body of persons shall have power, notwithstanding anything contained in any Act, order, or instrument by or under which it is constituted or regulated, to carry on munitions work during the present war.

Power for companies to carry on munitions work.

17. Any rule made under this Act shall be laid before each House of Parliament forthwith, and, if an Address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat next after any such rule is laid before it praying that the rule may be annulled, His Majesty in Council may annul the rule and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

Rules to be laid before Parliament.

18. The Documentary Evidence Act, 1868, as amended by the Documentary Evidence Act, 1882, shall apply to the Minister of Munitions in like manner as if that Minister were mentioned in the first column of the Schedule to the first-mentioned Act, and as if that Minister, or a secretary in the Ministry or any person authorised by the Minister to act on his behalf, were mentioned in the second column of that Schedule, and as if the regulations referred to in those Acts included any document issued by the Minister.

Application of Documentary Evidence Acts to Ministry of Munitions.
31 & 32 Vict. c. 37.
45 & 46 Vict. c. 9.

19. In this Act, unless the context otherwise requires,—

Interpretation.

- (a) The expression “lock-out” means the closing of a place of employment, or the suspension of work, or the refusal by an employer to continue to employ any number of persons employed by him in consequence of a dispute, done with a view to compelling those persons, or to aid another employer in compelling persons employed by him, to accept terms or conditions of or affecting employment :
- (b) The expression “strike” means the cessation of work by a body of persons employed acting in combination, or a concerted refusal or a refusal under a common understanding of any number of persons employed to continue to work for an employer in consequence of a dispute, done as a means of compelling their employer or any person or body of persons employed, or to aid other workmen in compelling their employer or any person or body of persons employed, to accept or not to accept terms or conditions of or affecting employment.

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Short title
and duration

20.—(1) This Act may be cited as the Munitions of War Act, 1915.

(2) This Act shall have effect only so long as the office of Minister of Munitions and the Ministry of Munitions exist :

Provided that Part I. of this Act shall continue to apply for a period of twelve months after the conclusion of the present war to any difference arising in relation to the performance by the owner of any establishment of his undertaking to carry out the provisions set out in the Second Schedule to this Act notwithstanding that the office of Minister of Munitions and the Ministry of Munitions have ceased to exist.

SCHEDULES.

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SCHEDULE I.

Sections 1, 4.

1. Any difference, matter or question to be referred for settlement in accordance with the provisions of this Schedule shall be referred to one of the three following arbitration tribunals :—

- (a) The Committee appointed by the First Lord of the Treasury known as the Committee on Production ; or
- (b) A single arbitrator to be agreed upon by the parties or in default of agreement appointed by the Board of Trade ; or
- (c) A court of arbitration consisting of an equal number of persons representing employers and persons representing workmen with a chairman appointed by the Board of Trade.

2. The tribunal to which the reference is made shall be determined by agreement between the parties to the difference or in default of such agreement by the Board of Trade.

3. The Arbitration Act, 1889, shall not apply to any reference under the provisions of this Schedule.

SCHEDULE II.

Sections 4 (4),
20.

1. Any departure during the war from the practice ruling in the workshops, shipyards, and other industries prior to the war, shall only be for the period of the war.

2. No change in practice made during the war shall be allowed to prejudice the position of the workmen in the owners' employment, or of their trade unions in regard to the resumption and maintenance after the war of any rules or customs existing prior to the war.

3. In any readjustment of staff which may have to be effected after the war priority of employment will be given to workmen in the owners' employment at the beginning of the war who have been serving with the colours or who were in the owners' employment when the establishment became a controlled establishment.

4. Where the custom of a shop is changed during the war by the introduction of semi-skilled men to perform work hitherto performed by a class of workmen of higher skill, the time and piece rates paid shall be the usual rates of the district for that class of work.

5. The relaxation of existing demarcation restrictions or admission of semi-skilled or female labour shall not affect adversely the rates customarily paid for the job. In cases where men who ordinarily do the

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6. A record of the nature of the departure from the conditions prevailing when the establishment became a controlled establishment shall be kept, and shall be open for inspection by the authorised representative of the Government.

7. Due notice shall be given to the workmen concerned wherever practicable of any changes of working conditions which it is desired to introduce as the result of the establishment becoming a controlled establishment, and opportunity for local consultation with workmen or their representatives shall be given if desired.

8. All differences with workmen engaged on Government work arising out of changes so introduced or with regard to wages or conditions of employment arising out of the war shall be settled in accordance with this Act without stoppage of work.

9. Nothing in this Schedule (except as provided by the fourth paragraph thereof) shall prejudice the position of employers or persons employed after the war.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.